

# The Appellate Compounding Mechanism

*How a Fabricated Finding Was Laundered Through the Appellate Record  
— Analytical Note to the Logic Model Series*

## Case references

**BV20D01752 | CA-2024-001342 | AC-2025-LON-004293 | Six Decisions**

**Across Three Courts**

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*Veritas Numquam Perit*

## PURPOSE

This note explains the mechanism by which a single fabricated factual finding at EWFC 79 paragraph 64 was carried through three subsequent judicial decisions without ever being examined on its evidential basis. The mechanism is the **Appellate Compounding Rule**.

The note is read alongside, but does not duplicate, the per-decision Logic Models (Ex29, Ex36, Ex33, Ex42, Ex41, Ex43). It explains how those decisions interlock to convert a single error of finding into a procedurally settled appellate record.

The note is the analytical key to the entire forensic sequence. It identifies what each subsequent judge did with the prior decision, and why each downstream reliance fails. The reader who has understood this note will understand the case.

## SECTION 1 — THE SOURCE: WHY PARA 64 IS FABRICATED

EWFC 79 paragraph 64 contains the founding factual finding against the Applicant. MacDonald J describes her presentation in the witness box during the final hearing as "*obsessed with demonstrating that the husband has hidden assets*" — a characterisation that "*bordered on the concerning*".

That finding is FABRICATED for three independent reasons documented in the Decision 4 Logic Model (Ex29):

- 1. The evidential basis is missing from the record.** The question of hidden assets was put to the Applicant once in cross-examination (Day 3, 21 February 2024, 14:51). She rejected it. The judgment then attributes 22 instances of the topic to her witness box presentation. The 22-to-one ratio is inverted from the actual transcript.
- 2. The presentation has a documented clinical explanation in the same record.** The trial heard 25 oral references to the Applicant's autism and PTSD — 13 by the judge himself. Autistic communication under adversarial stress can present as sustained, detail-focused, repetitive engagement. That is the clinical explanation for the same presentation that para 64 describes as obsession.
- 3. The judgment then erases the clinical explanation.** EWFC 79 contains 111 paragraphs. The words "*autism*", "*PTSD*", "*disability*", "*Part 3A*", "*vulnerability*", and "*reasonable adjustments*" do not appear in any of them. The clinical explanation that was on the record at trial is absent from the document of record.

The finding at para 64 is therefore not just "*open to doubt*" on the evidence. It is a finding for which no evidential basis exists in the record as stated, while the clinical explanation that does exist in the record has been removed from the judgment.

This is the foundation. Everything that follows is downstream of it.

## SECTION 2 — THE DECISION 8 ENDORSEMENT: VOLPI APPLIED TO A FABRICATED FINDING

On 23 December 2024, Moylan LJ refused permission to appeal on the papers, without oral hearing. The order applies *Volpi v Volpi* [2022] EWCA Civ 464 to para 64 and concludes that the finding was "*plainly open*" to MacDonald J.

*Volpi v Volpi* is a sound legal principle. It protects trial judges' findings of fact from appellate interference where the findings rest on evidence the judge saw and heard. The principle exists because the trial judge has the advantage of observing witnesses; an appellate court reading the transcript does not.

The principle does not protect findings that have no evidential basis in the record. *Volpi* is concerned with the **weight** given to evidence, not its **existence**. A finding built from an evidential vacuum is not protected by *Volpi*. A finding contradicted by the transcript is not protected by *Volpi*. *Volpi* protects the judge's assessment of contested evidence — it does not validate an inference that the evidence does not support.

Moylan LJ applied *Volpi* to para 64. He did not examine whether the para 64 inference rested on evidence in the record. He treated the FABRICATED finding as if it were an evidence-based finding, then applied the test that protects evidence-based findings.

This is the categorical error. It is the **right legal test applied to the wrong category of finding**. The conclusion that para 64 was "*plainly open*" to MacDonald J does not follow from the application of *Volpi* to a finding that has no evidential basis. The conclusion is MISCHARACTERISED.

The Logic Model for Decision 8 (Ex43) sets out this analysis at finding-by-finding level. Five further errors compound this central error. The MPS ground was suppressed; the Coinbase ground was suppressed; the EA 2010 s.149 ground was answered by addressing a different question; the Oxus perjury allegation was treated as a civil appeal question; the Part 3A complaint about the post-trial period was answered by reference to the hearing period.

The Moylan LJ order is therefore not a substantive determination of the 17 grounds. It is a procedural foreclosure. The order closes the appellate route under s.54(4) Access to Justice Act 1999 — final, no oral hearing available — without the central factual finding having been examined.

## SECTION 3 — THE LAUNDERING: WHY MOYLAN LJ'S ENDORSEMENT MATTERS

A judicial decision that endorses a finding becomes itself a part of the official record. Once the Court of Appeal has refused permission to appeal, the record reads as follows:

- Trial judge made the finding
- Court of Appeal considered the appeal
- Court of Appeal found the trial judge's conclusions "*plainly open to him*"
- Permission refused
- Route closed

A reader of that record — including any subsequent judge — concludes that the finding has been examined and survived appellate scrutiny. The finding has been "*laundered*" into the record. The original error is no longer visible on the surface of the documents; what is visible is the appellate endorsement of the finding.

This is the mechanism by which a FABRICATED finding becomes a procedurally settled fact. The error is preserved by the structure of appellate decisions — each step adds a layer of apparent judicial authority, while the underlying foundation is never examined.

The laundering is not a metaphor. It is operational. It changes what subsequent judges do with the finding. After Moylan LJ's endorsement, the para 64 finding is treated by every subsequent court as a determined fact. The original Logic Model question — does the finding rest on evidence in the record? — is no longer asked, because the appellate decision has been read as having already asked and answered it.

## SECTION 4 — ITERATION TWO: KING LJ AND THE CPR 52.30 REOPEN

On 4 August 2025, King LJ refused permission to reopen the Moylan LJ order under CPR 52.30. The CPR 52.30 test is two-stage:

- **Stage 1:** Did the judge who refused permission engage with the issues?
- **Stage 2:** If yes, is there a powerful probability that a significant injustice has occurred because the decision would have been different if the integrity of the earlier proceedings had not been critically undermined?

King LJ answered Stage 1: "*It is clear that Moylan LJ engaged with all of the extensive grounds advanced by the applicant in support of her application for permission to appeal.*"

That conclusion is itself MISCHARACTERISED. The Decision 8 record shows that Moylan LJ:

- Applied *Volpi* to a finding that does not rest on evidence (categorical error)
- Did not address MPS as a standalone ground (suppression)
- Did not address Coinbase as a standalone ground (suppression)
- Conflated the Oxus perjury allegation with a factual findings appeal (different question answered)
- Addressed the hearing period in response to a complaint about the post-trial period (different question answered)
- Did not engage EA 2010 s.149 as a standalone statutory duty (different question answered)

King LJ does not identify what Moylan LJ said about MPS, Coinbase, EA 2010 s.149, or the post-trial Part 3A complaint. The Stage 1 finding therefore rests on the assertion that engagement occurred, not on an examination of whether the actual grounds were addressed.

This is the second iteration of the compounding. Where Moylan LJ treated the FABRICATED para 64 finding as evidence-based, King LJ treated Moylan LJ's MISCHARACTERISED engagement as a complete engagement. Both judges applied the correct test (*Volpi*; CPR 52.30 Stage 1); both judges applied the test to the wrong category of object.

The CPR 52.30 Stage 2 question — the powerful-probability-of-injustice question — was not reached because Stage 1 was answered affirmatively. The grounds that were absent from Moylan LJ's order are also absent from King LJ's order. The Logic Model for Decision 13 (Ex42) sets this out.

After Decision 13, the domestic appellate route is closed under CPR 52.30(7) — final, no further application available.

The Applicant has now been through two appellate decisions. Neither has examined whether the foundation finding rests on evidence in the record. Both have endorsed the prior decision on the basis that engagement occurred.

## **SECTION 5 — ITERATION THREE: MACDONALD J 8 MAY 2025 — RELIANCE ON THE CLOSED APPELLATE ROUTE**

On 8 May 2025, MacDonald J — the original trial judge — heard the Applicant's set-aside application in her absence. The Logic Model for Decision 12 (Ex33) analyses the hearing in detail.

For the purpose of this note, the operative point is the ground on which MacDonald J characterised the set-aside application as without merit. The judgment cites the Court of Appeal refusal: "*the Court of Appeal... refused permission to appeal.*" MacDonald J treats the Moylan LJ order as a substantive determination of the appeal grounds.

It is not. As established in Section 2, the Moylan LJ order applied *Volpi* to a FABRICATED finding and did not address four standalone grounds. The order is procedurally final but is not a substantive determination.

MacDonald J does not examine the Moylan LJ order. He cites it. The citation operates as an authority. The original error at para 64 has now been laundered twice — once by Moylan LJ's *Volpi* application, and once by MacDonald J's reliance on the appellate refusal.

The 8 May 2025 judgment then makes new findings — that the Applicant was "*deliberately obstructive*", her submissions "*verbose and rambling*", her conduct "*persistent poor litigation conduct*" — and imposes an indemnity costs order. These new findings rest on the same characterisation as para 64. The compounding has converted a single fabricated finding into a financial and reputational penalty escalating across three judgments.

The recusal application that was filed daily from 10 February 2025 was not addressed in the 8 May 2025 judgment. The judgment makes no reference to it. The Logic Model for Decision 12 sets out the analysis.

## SECTION 6 — ITERATION FOUR: COLLINS RICE J AND THE JR FORECLOSURE

On 11 March 2026, Collins Rice J refused permission for judicial review of administrative acts and omissions by HMCTS and the Secretary of State for Justice. The Logic Model for Decision 15 (Ex41) sets out the analysis.

The JR was a different procedural vehicle. It did not seek to reopen EWFC 79. It challenged the **administrative** acts and omissions that surrounded the proceedings — the withdrawal of participation measures without an order, the failure to log criminal referrals, the remission of MPS arrears without a hearing, the failure to engage EA 2010 s.149, and the failure to safeguard the Imerman devices.

Collins Rice J refused permission on the basis that the matters complained of "*appear to relate to judicial determinations*" and were therefore not amenable to JR. The reasoning treats the administrative failures as "*ancillary*" to judicial decisions that have already been determined.

This is the fourth iteration of the compounding. The administrative failures were not determined by Moylan LJ, King LJ, or MacDonald J. They were either suppressed (MPS, Coinbase) or mischaracterised (Part 3A, EA 2010 s.149). The JR was the first procedural vehicle in which the administrative failures could properly be examined.

Collins Rice J's reasoning is that the administrative failures cannot be examined because they relate to judicial determinations. Those judicial determinations were the Moylan LJ order, the King LJ order, and the MacDonald J 8 May 2025 order. Each of those orders, as established above, did not examine the foundation finding or the standalone grounds. The JR is therefore foreclosed by reference to determinations that do not exist.

The Logic Model for Decision 15 sets this out under the heading "*the judicial / administrative boundary*". Where no judicial act is identified to determine an administrative failure, the characterisation of the failure as "*ancillary*" to a judicial determination cannot stand.

## SECTION 7 — THE COMPOUNDING SCHEMA

The complete sequence can be expressed as follows.

| Step | Decision                                           | What the court did                                                | What the court did not examine                                       |
|------|----------------------------------------------------|-------------------------------------------------------------------|----------------------------------------------------------------------|
| F(1) | Decision 4 — EWFC 79 — MacDonald J — 18 April 2024 | Made the finding at para 64. Erased disability from the judgment. | The evidence underlying the finding. The clinical explanation in the |

|             |                                              |                                                                                                                                  |                                                                                                                                           |
|-------------|----------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------|
|             |                                              |                                                                                                                                  | record.                                                                                                                                   |
| <b>F(2)</b> | Decision 8 — Moylan LJ — 23 December 2024    | Applied <i>Volpi</i> to para 64 and found it " <i>plainly open</i> ".                                                            | Whether the finding rested on evidence in the record. MPS, Coinbase, EA 2010 s.149, post-trial Part 3A.                                   |
| <b>F(3)</b> | Decision 12 — MacDonald J — 8 May 2025       | Cited the Court of Appeal refusal as authority for proceeding. Made new findings of " <i>deliberately obstructive</i> " conduct. | Whether the Moylan LJ order was a substantive determination. The recusal application. The clinical evidence (Dr Poyser findings B and C). |
| <b>F(4)</b> | Decision 13 — King LJ — 4 August 2025        | Found Moylan LJ " <i>engaged with the issues</i> " at CPR 52.30 Stage 1.                                                         | Whether Moylan LJ addressed the actual grounds. MPS, Coinbase, EA 2010 s.149, post-trial Part 3A.                                         |
| <b>F(5)</b> | Decision 15 — Collins Rice J — 11 March 2026 | Refused JR on the basis that administrative matters " <i>relate to judicial determinations</i> ".                                | Whether identifiable judicial determinations exist for the administrative failures. EA 2010 s.149 as a duty on public authorities.        |

The schema is the **mechanism of laundering**. At F(1), a finding is made that has no evidential basis. At F(2), the finding is endorsed by reference to a legal test designed to protect evidence-based findings. At F(3), the endorsement is cited as authority for further adverse findings. At F(4), the endorsement is itself endorsed as engagement with the issues. At F(5), the entire chain is treated as a body of judicial determinations that closes the administrative-failure route.

The grounds that were never examined at F(2) — MPS, Coinbase, EA 2010 s.149 as a standalone duty, post-trial Part 3A — are also never examined at F(3), F(4), or F(5). The Applicant raised those grounds repeatedly. No court at any level has determined them on their merits.

## SECTION 8 — WHY THIS MATTERS

The compounding has three operational consequences for the Applicant.

**First financial.** The £1,055,654.50 fixed financial consequence (£800,000 add-back + £255,654.50 costs) rests entirely on the para 64 characterisation. The compounding rule applied at Decision 6 (EWFC 114) and analysed at Ex36 converts the FABRICATED finding into a financial penalty. The Detach Lending Limited debt of £1,008,848.42, accruing at £281 per day, is downstream of the same exclusion from the proceedings.

**Second procedural.** The appellate route is closed. The CPR 52.30 reopen route is closed. The JR route is closed. Each route was closed by reference to the prior step in the compounding chain. The Applicant cannot challenge the foundation finding because every procedural vehicle for challenging it has been foreclosed by reference to a prior decision that itself did not examine the foundation finding.

**Third reputational.** Each subsequent decision has added new adverse characterisations. "Obsessed" at Decision 4. "Disruptive" and "litigation misconduct at the extreme end of the scale" at Decision 6. "Plainly open" at Decision 8. "Deliberately obstructive" and "persistent poor litigation conduct" at Decision 12. Each characterisation is downstream of the para 64 inversion. Each appears in a public judgment.

The compounding rule is therefore not merely an analytical observation. It is the operative mechanism by which a documented disability has been converted, through judicial drafting and procedural foreclosure, into a finding of bad character with permanent financial and reputational consequences. The mechanism is documented step by step in the six Logic Models. This note is the navigation key to those Logic Models.

## SECTION 9 — WHAT REVERSES THE COMPOUNDING

The compounding is reversed at the point where any one court examines the foundation finding on its actual evidential basis.

The transcript of the February 2024 final hearing is the document that would do this. The transcript would establish: how often the topic of hidden assets was actually put to the Applicant; what her actual answers were; how often disability was actually referenced; what the Judge actually heard and acknowledged. The Applicant has applied repeatedly for the transcript at public expense. The application has been refused.

The official transcript is the document that — if produced — would expose the inversion at para 64 to direct examination. Without it, the appellate record stands. With it, the foundation finding is testable against the record on which it purports to rest.

This is why the EX107 transcript application matters. It is not merely a procedural step. It is the document that would break the compounding chain.

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*Standing instructions: Paul Sibenik not mentioned. Address withheld throughout. Coinbase material in dedicated annex only.*

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